



**INCITEMENT
INCITEMENT
INCITEMENT**

Topeka Independent Living Resource Center
501 SW Jackson St., Suite 100
Topeka, KS 66603-3300
Address Service Requested.

Presorted Standard
US Postage
PAID
Topeka, Kansas
Permit No. 515



**INCITEMENT
INCITEMENT
INCITEMENT**

Volume 22 No. 2

A Publication of ADAPT

Summer 2006

ADAPT Action, Nashville Tennessee

Sunday, March 19, 2006.
ADAPT's Day of Testimony

NASHVILLE -- Testimony of rape, abuse, neglect and lonely death given by survivors of institutionalization filled the Volunteer Ballroom of the Hilton in downtown Nashville. ADAPT, the nation's largest grassroots direct-action organization of

people with disabilities, coordinated witnesses for the first ever National Day of Testimony to document the human impact of the institutional bias in the United States. The Volunteer Ballroom was packed with people from across the nation who had come to bear witness.

LaTonya Reeves moved away from her family in Memphis to avoid returning



Rally at Legislative Plaza

Photo by Tim Wheat

Support the work of ADAPT! Become Inciteful!

Incitement comes out on a quarterly basis. With all that is going on it is so important that you give all you can. Even though there is no mandatory subscription, it does cost money to keep the information flowing. Your contribution keeps the activist voice of ADAPT speaking out.

Send to:
TILRC/*Incitement*
501 SW Jackson St
Topeka, KS 66603

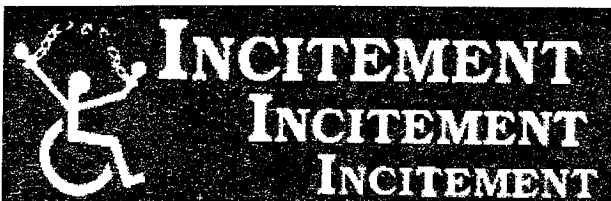
Yes! I support ADAPT. Here is my contribution for *Incitement*:

\$10 ___ \$15 ___ \$25 ___
\$35 ___ \$50 ___ \$75 ___
\$100 ___ \$500 ___
Other _____

Your contribution is tax deductible.

Make checks payable to: Topeka
Independent Living Resource Center

Name _____
Address _____
City _____ State _____ Zip _____
Phone _____
e-mail _____



ADAPT/Incitement
1339 Lamar SQ DR #101
Austin TX 78704
(512) 442-0252 v/TTY
(512) 442-0522 FAX

Incitement is produced from the offices of Topeka Independent Living Resource Center (TILRC). Articles, letters, compositions, displays and photos are encouraged. Please contact Tessa Goupil for deadlines for submission of materials. The Editor reserves the right to edit or omit any material that is submitted. For more information, contact Tessa Goupil at TILRC or Stephanie Thomas at ADAPT.

Topeka Independent Living
Resource Center, Inc.
501 SW Jackson St., Suite 100
Topeka, KS 66603-3300
(785) 233-4572 v/TTY
(785) 233-1815 TTY
(785) 233-1561 FAX

to a nursing home. Tennessee does not offer alternatives to expensive and undesirable institutions forcing citizens like LaTonya to leave home for a facility.

"One day I had an accident and the nurse made me wash my face in it," Ms. Reeves said about the nursing home where she once lived. "She filled the bathtub with

"These nightmares
are only the tip of
the iceberg . . ."

cold water and made me stay there for two hours. She said: 'If you don't stop screaming I'll come and drown you.'"

The sixty witnesses were individuals that had been placed in an institution because of a disability and had successfully moved out of the facility into their own home. The national panel was made up of private and government organizations that deal with disability policy: Andrew J. Imparato from the Ticket to Work advisory council, Jim Ward the leader of ADAWatch, John Lancaster the Executive Director of National Council on Independent Living, Gwen Gillenwater of American Association of People with Disabilities and the Medicaid Commission, Dr. Margaret Giannini, Director of the Health and Human Service Office on Disability, and Carol Novak of the National Council on Disability.

"These nightmares are only the tip of the iceberg, they are the voice for so many voices that cannot be heard," said Stephanie Thomas of ADAPT. "The fact of the matter is for that system what people with disabilities really are is the crop. We are the crop. We are there to fill beds, so they are warm beds, so they get paid. That is what it is about, and that is what it's got to stop being about. It's got to be about people's lives, and that is the voice we have got to give the message this week. That is the voice we have to bring out there. Yeah it is a nightmare, but I will tell you something else that you hear when you listen to those stories: The people that told them are damn strong people."

The testimony is intended to put a human face on immoral policy of requiring expensive institutional services while making home and community based services optional. Because of this built-in bias in Medicaid policy, the lion's share of public funding goes to the nursing home

Danny Saenz of Austin TX, testifies.

Photo by Tim Wheat



industry and state institutions. States like Tennessee are tempted to cut home and community-based services to save on the federal Medicaid spending, even though those are the more desirable and cost-effective programs.

The fractured federal policy makes it possible for people like LaTonya to leave a nursing home in Tennessee to live and work in another US state where she can receive home and community-based services. A banner across the back of the auditorium where the testimony was given showed the Colorado and Tennessee state flags on either end of the sign. Between the flags were photos of about a dozen people who had followed the trail LaTonya blazed. The caption: "The Underground Rail Road," comparing escaping institutions to crossing state lines to flee slavery.

The national panelists expressed their shock.

Mr. Jim Ward noted that Robert Kennedy had gone to see the inhuman conditions at Willowbrook forty years ago on this day. Willowbrook later became the impetus for many reforms laws of abusive

and neglectful institutions.

Andy Imparteo noted his surprise that about four-out-of-five witnesses spoke of forced medication as an unnoticed form of abuse. "Today I heard your message, a strong message," he said, "that there are ongoing human rights violations inside institutions."

"I am most impressed by the abuse and neglect," said Dr. Margaret Giannini, "I believe you will help to change the system and end this institutional bias."

Monday, March 20, 2006. Just Like a Nursing Home, You Can't Get Out

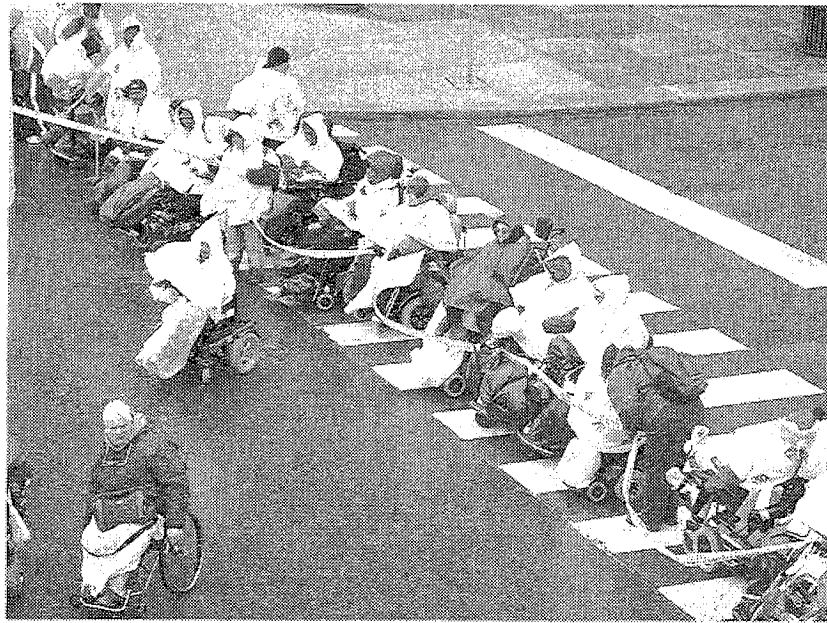
At 11:00 ADAPT Activists charged out into the rain wearing ponchos, raincoats and trash bags, sometimes all three. Duct tape held the plastic in place most often to protect legs from the cold windy rain and also to cover exposed powerchair controls. It took the group about forty-five minutes to move from the Hilton Hotel to the corner of Union and 6th Street chanting along the way.

"It was wild on the march up to the Capitol," said Bruce Darling of Rochester, "some people along the sidewalk joined in with ADAPT on the chant 'up with attendant care,' they were really getting into it and yelling back: 'down with the nursing homes.'"

At 12:30 ADAPT gathered on Legislative Plaza for a rally. The rain had slacked, but the open plaza was exposed to a bitter wind and the group huddled together. The long line of activists moving on the streets had transformed into a massive clump of people at the plaza steps. The Greek columns at the peak of the Legislative Plaza steps were decorated with ADAPT banners and a sound system helped rally speakers contend with the blustery weather. Bob Kafka started the chant: "Governor Brede- sen shame on you."

Activists block Dedrick Street.

Photo by Tim Wheat



Deborah Cunningham, the Executive Director of the Memphis Center for Independent Living welcomed everyone to Nashville and told of the serious need for reform in Tennessee. She set the stage for the day's action by calling for support for the Community Choices Act of 2006, which would not cost taxpayers anything, but would give Tennesseans a choice in long term care services and not be forced into a nursing home.

"We must have choices," she said. "We are serious, we will be back and we won't stop."

Following the rally in the cold and rainy wind at Legislative Plaza, ADAPT divided up into smaller groups and suddenly moved into the middle of several major downtown streets. Metro Police and Tennessee State Troopers rerouted traffic away from the blocked intersections making a large impassable area around the Capitol.

"The cops did not know what was coming at them," said Chris Hildebrandt of Rochester, "before they knew, everyone was in place. It became pretty intense at some of the parking places, but our people were great, they held their ground and

showed our determination to change the immoral policies in our country."

Over one hundred activists were arrested or cited by Nashville Metro Police as ADAPT blocked six downtown intersections, all exit roads from the Capitol, and demanded that Tennessee Governor Phil Bredesen support alternatives to expensive and undesirable nursing homes. For seven hours ADAPT blocked traffic to and from the capitol area on Charlotte, Deadrick, Union, 6th, 7th and 8th streets.

At 4:30 the tension level rose as state employees finished

work and many found they had no way to get home. Cars pushed on the line of protestors and honked. Heated banter was exchanged as many people got out of their cars and confronted the activists. The state employees could see the Metro Police and State Troopers a block further away rerouting traffic which gave the impression that they were not assisting. Governor Bredesen also fed this misunderstanding and seemed to fault the police for the tension.

"The governor obviously does not mind being a leader of a state that segregates people with disabilities," said Randy Alexander of Memphis, "all he wants to do is place blame and say it is somebody else's fault. He is a coward."

Tuesday, March 21, 2006.

**Governor, Governor hear our shout:
6,700 want to get out!**

ADAPT again demonstrated in front of the Tennessee State Capitol and blocked Charlotte Avenue demanding that Governor Bredesen end the immoral and inhuman policies that split families and

segregate people with disabilities. The governor ringed the Tennessee Capitol with state troopers and barricaded the entrances to keep the single sheet of paper with the ADAPT demands from reaching his office. Retreating into his sanctuary from the citizens, the governor again refused to support the Community Choices Act or meet with ADAPT.

"We are just asking to be treated like human beings," said Don DeVaul of Tennessee. "The governor wants to put us into a warehouse, I might as well get started now."

Accessible paddy wagons arrived just ten minutes after a group of about 60 returned from an attempt to enter the Capitol Building. The state troopers were obstructing all of the entrances to the public building with vehicles and a line of troopers at the front steps. The ADAPT group, unable to enter the building, headed out to the street and blocked traffic along Charlotte Avenue in front of the capitol.

"I am going to jail because people are dying without the option to get out of nursing homes," said Ken Walla of ADAPT. "I



Dawn Russell in handcuffs.

Photo by Tim Wheat

The governor has ignored cost-saving solutions

am going to jail for freedom."

Activists using wheelchairs were handcuffed in the street and Metro Police carried off those not using wheelchairs. Hundreds of ADAPT activists lined the sidewalk nearby in the cold wind, chanting support for those being arrested.

"The Nashville Chief of Police noted that locking people with disabilities away is costly to the taxpayers," said Dawn Russell of ADAPT. "Why are nursing homes any different than jails? The Chief sadly implies that docile incarceration in a nursing

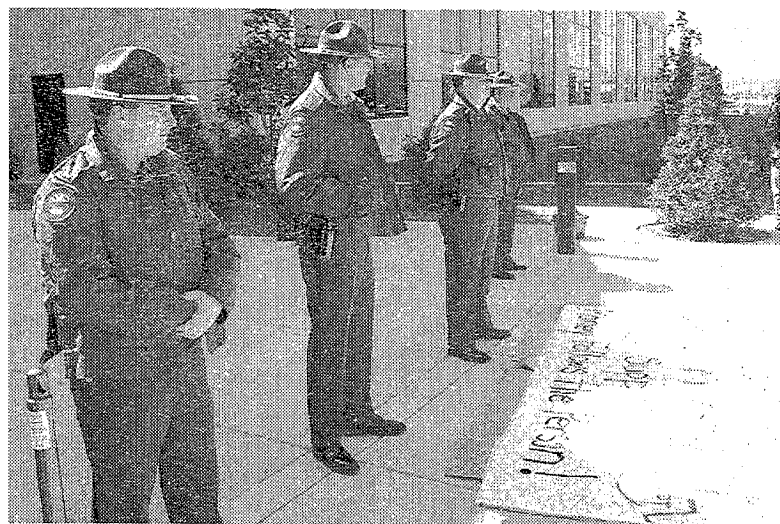
home is acceptable. For people with disabilities to be angry at their jailors is shameful and a waste of tax money."

Following up a demonstration yesterday, ADAPT continued to demand that Tennessee change state policies that force citizens from their homes and families into expensive and undesirable institutions. Around one hundred activists were cited on Monday in the downtown streets of Nashville as ADAPT blocked six intersections and detained thousands of state employees. State money currently is paid to facilities that ware

house people, but the Community Choices Act would allow that money to follow the person into the community and get the services they may need in their own home.

"Bredesen does not like the light being shown on what living in a nursing home is really like," said Bob Kafka over the public address system outside the Capitol. "Tennessee spends \$160 on nursing homes for every dollar the state spends on home and community based services. If Bredesen thinks that nursing homes are one-hundred-and-sixty times better than your own home, we challenge him to leave his home on Chickering Road and stay in the nursing home of his choice for a few days."

The day began for the ADAPT activists with a march to the Capitol Building through the streets of Nashville. The group of 500 activists stretched several blocks as they made their way in the streets rather than use the sidewalks with Metro Police blocking traffic along the route. At the conclusion of the march, ADAPT held a press conference along Charlotte Ave. in view of Governor Bredesen's office. The day was windy and cold with only a slight bit of rain.



Note is left at State Troopers' feet.

Photo by Tim Wheat

Wednesday, March 22, 2006. Our Homes, Not Nursing Homes

ADAPT delivered a message to the Department of Housing and Urban Development (HUD) office in Tennessee that ADAPT demands the federal housing department make housing vouchers available to get people out of Nursing Homes. Gathering two miles north, however, ADAPT's presence in the city caused the Capitol to be closed to the public.

"We are going to pursue Alphonso Jackson everywhere he goes and find him wherever he is," said Cassie James of ADAPT. "For sixty-seven hundred in Tennessee and thousands upon thousands around the country who cannot get out of institutions, let's make April a month that Alphonso Jackson will never forget."

Before gathering at the HUD office, the ADAPT activists marched to the front door of the TennCare Bureau on Great Circle Road and were greeted at the entrance by a line of state troopers. Activists from Tennessee led the group up to the officers but stopped short of passing through the line. The ADAPT line continued past the entrance, leaving the Tennessee group facing off with the State Troopers.

A large cardboard sign pushed right up to the officers read: "Dear Steve Hopper: 6,700 disabled people want out of nursing homes. Support Money Follows the Person, -ADAPT." The Tennessee group that led the procession confronted the officers for about ten minutes as the long line of activists passed, rejoining the end of the column and leaving the note at the State Troopers' feet.

Although ADAPT was nowhere near the Tennessee State Capitol today, the complex was shutdown to all but scheduled

business. The move was likely to make the offices less of a target for ADAPT but the extreme measure shows the extent of the governor's fear of light being shined on the typically veiled plight of people in institutions. The state of Tennessee has chosen to fund almost exclusively expensive and undesirable facilities to provide long-term care. The costly state dependence on inefficient and immoral long-term service delivery clashes with Governor Bredesen's self-proclaimed reformer status.

"For the safety of the people who are there and safety of the public in general, we've got it closed at this time," said Col. Mike Walker, commander of the Tennessee Highway Patrol.

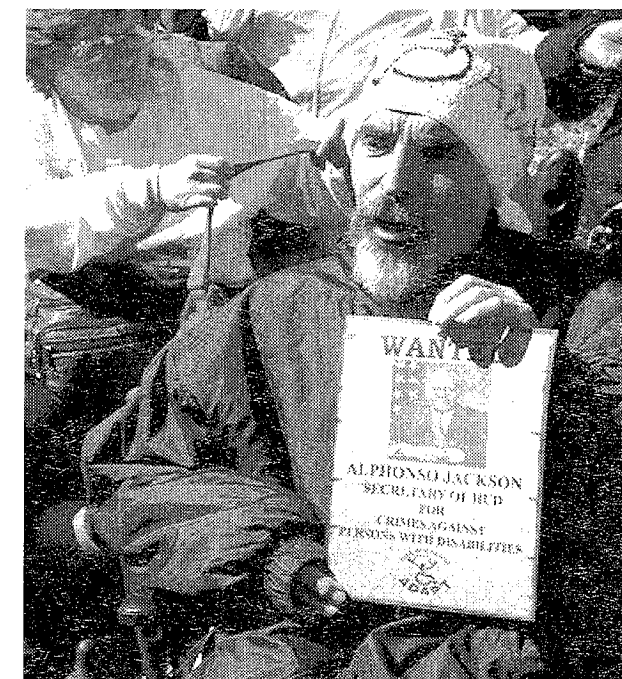
At the HUD office ADAPT gathered at the entrance but did not block access. The group packed the small concrete apron outside the door and chanted "our homes not nursing homes." Just before 2:00 PM, Cassie James spoke to the crowd, and asked to speak with the Director of the HUD office.

"For the people of Tennessee it has taken a long time," said Deborah Cunningham, Executive Director of the Memphis Center for Independent Living. "For the past twenty-years we have been working to get people out of nursing homes and into affordable, accessible, integrated housing. Today proves we are serious and that we are committed to this struggle for however long it may take."

Following the speeches and a MacDonald's lunch, Deborah Cunningham, Cassie James and Sher Stewart of ADAPT, went into the office to speak with the local

Joaquin Martinez at HUD.

Photo by Tim Wheat



HUD director. In less than ten minutes they returned and announced that William H. Dirl had agreed to all the demands and would like to address ADAPT.

"I came down here to listen to you, I will hear what you have to say. I have been given a letter that I assure you that will get to Secretary Jackson." Said Mr. Dirl. "I understand that the major concern as it relates to HUD is vouchers. That is a concern that we are worried about also. We will certainly make sure that your wishes and your concerns make it to the highest levels, which is Secretary Jackson."

"He agreed with us and was very concerned about the vouchers," said Ms. Cunningham. "I believe that he understands the need."

Tennessee does not offer alternatives to expensive and undesirable institutions.

Real People and their Real Stories

The following are excerpted quotes from the testimony in Nashville. Over six hours of testimony was given on that day. The entire transcript of the testimony will be available on the ADAPT website www.adapt.org

LaTonya Reeves - I'm originally from Tennessee. When I was younger I was put in a nursing home that was supposed to be a Rehab center. ... The abuse I received was one day I had an accident and the aide made me wash my face in it. ... a therapist from hell, she put me in the bathtub and turned cold water on me and on my face and made me stay there for two hours and said if you don't stop screaming I'll drown you. So I let relatives know about this and I got taken home for Christmas and never brought back... I was trying to get services in Tennessee, which I couldn't, so I went on my first ADAPT Action in Baltimore and met Wade Blank at Atlantis Community and he told me about Atlantis/ADAPT and I moved there, but I've been there for going on 16 years living in my own apartment and also my job there is to free our people from nursing homes!

Randy Alexander - I was continually told there wasn't the services I needed to live



Randy Alexander testifies.
Photo by Tim Wheat

in an apartment. I couldn't get the hours I wanted. I couldn't get simply somebody to help me transfer in and out of bed, so I had to stay there. And during that time all my decisions were basically taken away from that point in time because there wasn't the option for me to have freedom to choose what I wanted.

Michael Taylor - I'm Renee Ford and I'm from Memphis and I'm reading Michael Taylor's statement. He desperately wanted to be here but the nursing home would not let him out. "... Here they gave me a measly \$30 every month and think I didn't need more because they took care of all my needs. That's BS. For example, I can't always use their telephone so I have to have my own cell phone. If I didn't have a little extra help from somebody else I wouldn't even be able to make a simple phone call. "

Diane Scotin - GA They kept me in a lock-up for an eight by eight and I had to use the rest room, both urine and the bowel, it had to go down a drain. I had no clothes on. It was freezing cold, sleeping on a cement floor. And, the one incident, she came in and said, are you ready to take your medication now? I said, no, I'm not going to take it. And she says, well, here is your water. You take a bath. And she threw a rag and it actually gave me third degree burns on my chest. And everybody has a -- everybody has a breaking point, and I guess at that time that was my breaking point...

Ed Hahn - And then my grandfather died, and even though I had come from Philadelphia to Erie by myself in a manual wheelchair -- it's a 12-hour bus ride -- they

wouldn't let me ride home on a train for two hours to go to his funeral. And that was the beginning of the end.

John Gladstone - We have to end these nursing homes and we have to close these nursing homes. And I don't care -- they say it can't be done. I say it can. ...It won't happen over night. There will be lots of discouragement, but they can be closed. They can be shut down. They're warehouses. They're prisons. They're murderers.



John Gladstone testifies.
Photo by Tim Wheat

Barbara Heinz - When they found out I wanted out, they try and brainwash you into thinking you can't do nothing for yourself, but I got out. Since I've been out I have been on a board of directors for CBFL and I... so I'm not letting nothing hold me back.

Dawn Green - Milwaukee, Wisconsin. The care there was awful and, I mean, I had to wait anywhere from half an hour to two hours to go to the bathroom, ... and the reason why I was discharged into the nursing home is because I couldn't wipe my butt or take care of myself in my home... How about now? Life is great. It's nice to be home. Home is where -- home is where you should be. I have my own apartment

and I'm independent with help from aides. I have help in the morning and help in the evening, so life is good.

Mike Clark - As I look back, I can remember the only people who told me about my options of living outside the nursing home was my friend and advocate from independent living resource center. Without the option to live at home I might be dead or worse. [but] I'm alive and very well.

Kurt Breslaw - I spent 17 years in a nursing home. I called it Coastline Concentration Camp. ...Now I'm out and I'm going to stay out.

JT Templeton - I lived in for 30 years. In a State School... I got out because of a lawsuit! ... After I got out, I live in my own house...

Daniel Remick - I am 58 years old. I was institutionalized at 8 and a half. My rights were taken away from me because of my disability. My mom and dad were told that I would never be able to live on my own because I did not have physical ability to do normal activity. Which it was a lie. ...I was sexually assaulted by an aide there...

Teresa Grove - I'm from Illinois. I am emotionally and mentally disabled. I've been in an institution since I was 14 years old.... I was initiated in an institution by all the girls with a broom handle. I was told by a staff person and a security guard that I was whining and I should be quiet and grow up... [Now] I live in the community, but I live under an ongoing threat of one more admission anywhere, and I will be placed forever in a nursing home. Thank you.

Larry Ruiz - Most of the people in the youth wing also grew up in institutions and we did not realized that we were living in substandard conditions.We had an

activities director named Wade Blank. He helped us form a residents council. Wade discovered that there were a lot of things to do for entertainment. We saw shows such as Elvis and Grateful Dead and our eyes were opened to the outside world and we began to grow restless. Wade had a vision of us being able to live on our own. He helped us realize this possibility. Once nursing home caught wind of our ideas of independence things began to get ugly. We were treated worse. We were even threatened by the administrator with a middle of the night eviction. Wade was fired and a restraining order was taken out against him. He used this time to look for an alternative for us. He found us apartments in the Las Casitas housing projects and then he came back to Heritage House the last time to break us out. It was June 1975 and the Atlantis community was born.

Steve Schaefer - Without insurance and not qualifying otherwise for assistance she needed to live there in order to stay alive. There was no choice. ...In a short time I watched her change from a spirited courageous intellectual to a compliant forgetful and timid woman. Finally after a six-month required period of wait, she qualified for social security disability. As a disabled

Karen Burrison testifies.
Photo by Tim Wheat



adult she now qualified for medical assistance in her home.

Jamie Ziegler - When I first went there, I found that as a resident you have no locks. You know your bedroom has no lock, your bathroom has no lock. You have no privacy whatsoever and very, very, very few people knock on the door. And then, when I very first came, I still had modesty and dignity and it bothered me people walked in all the time.

Michelle McCandless - When my friends would leave, I found out that the nurses got back at me by giving me cold showers, putting me in bed early, because the only way I could get around is if I was in my chair. Once they put me in bed, I was stuck. I couldn't get around. That was my punishment.

Carrie Fowler - Shady acres is the nursing home I was in. At first everyone put on this act just like they do when people are there, when the people are there to check them out. All of you know what I'm talking about. You have been there. You know exactly what I'm talking about. Because when they are here to check them out for the month, the year, whatever, it's "yes, ma'am, no, ma'am, yes, sir, no, sir. We'll do it just as fast as you want." But watch them leave and their attitude is "what do you want now?"

Angela Miller - I thought about mainly getting out to be with my children. Now, after I did get out, I still have visitation with my children, but I think about it, I can't get up and run any more like I used to, but at least I can sit and be with them thanks to ADAPT.

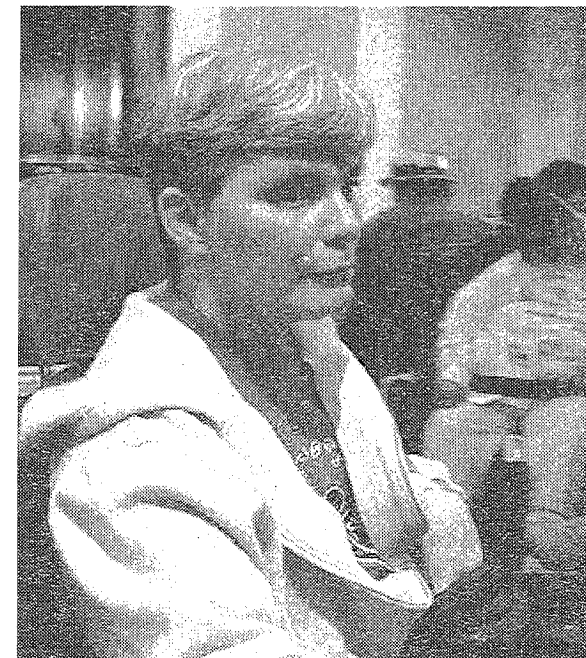
Carol Jones - I have worked in institutions and nursing homes for over 35 years... I've had many people in the community thank

me, say how happy they are to be in the community. I have never in 35 years had anyone say "gee, I wish I was in an institution."

Mike McCarty - I was there for seven years and did a whole bunch of things there, very active, but there was like invisible bars at the doors, just like you can - you can only go so far until, like, some one sees you leaving and, oh, mike's leaving, you know, so they come out and tell you to come back...

Glen Barnhill - Sitting in my chair, I usually do pretty good [breathing] the whole day. But when I'm laying down is when I had the majority of my respiratory trouble. And when I'm in a bed, I am totally dependent on someone to come help me. I can't get back up to seek help. I can't -- I don't have enough use of either one of my arms to help myself. Anyway, there were more times that I could count that my nurses aide or CNA ...had been in my room as many as four times on countless occasions, realize I was in respiratory distress and go back and tell the nurse. A lot of the CNA's I had, I had good relationships with and I know these people went back and told the nurses that I needed help. But yet the nurse would not come. And sometimes -- usually it was at night when I was in bed, but I could hear the med cart usually right down the hall from my door and half the time it was simply a matter of the nurse doing her med pass and she was not going to come to my room until she made it up to my room passing her meds. And I was literally laying almost flat on my back gasping for air, scared to death, not knowing if I'm going to have a stroke, die, or you know, if I did wake back up, if I was going to be a vegetable or what. My life was filled with constant fear and we got to the point that I was scared to death to get out of this wheelchair and lay down in a bed, and that's no life for anyone.

Linda Merkle - I'm a nursing home survivor. I was put in a nursing home after I suffered a stroke at the age of 45 because my family didn't know I could stay at home and get the same help that I was getting at the nursing home... And the nursing home -- the food was awful. Oh, it tasted terrible. There were nights when it was -- guess what you're having for dinner. Cause that's what it was; you couldn't tell what it was.



Linda Merkle testifies.
Photo by Tim Wheat

Sarah Wendell - I have a psychiatric disability called multiple personality disorder. I was in and out of institutions for 3 years... I would find myself in restraints, in what they would call the quiet room, which was a seclusionary room where people outside the room heard quiet. But for me it was a re-traumatizing and horrific event. I very rarely saw a doctor. The nurses and psychiatric aides would not speak to me unless I first identified myself as Sarah, adding to the confusion and stigma attached to my disability.

Samuel Mitchell - I was an ordained minister and also a truck driver who became disabled. I had a ministry to nursing homes.

I went in nursing homes and preached. I thought I knew a little bit about them. After becoming disabled, a year later I suffered a stroke. That's when I entered a nursing home, and I found out just how much I didn't know about nursing homes....

The prevailing atmosphere in nursing homes is that we now own you. We own you and everything about you. You become a non-person. Your rights, human rights and civil rights are routinely violated. ...Dignity, there was no dignity. I can remember sitting using the rest room and having a CNA come in the door and start washing something out and I told her "you can't be in here." She said, "I'm going to only be a minute, don't worry, Mr. Mitchell." I would say "get out." "I'm only going to be here a minute." "Get out!" I don't know anybody that wants prying eyes on them while they're sitting on the throne in all their glory.

Jimmy Griego - ... from Four Corners area, Farmington New Mexico... I was brutally beaten on March 12, 2001... with a



Norman Bethea testifies.
Photo by Tim Wheat

closed head injury. I was hospitalized for three years on and off and after that I got released from the hospital. I didn't have no place to go and no insurance. So the next place I went to was a nursing home... Which I can relate everybody that's been up here that these things do happen. And I complained a lot but they said, you've got a brain injury, you don't know what you're talking about.

Spitfire - I call nursing homes death camps. You see what I am wearing? No more T-4. I am Jewish, I qualify... What they did to me? Stage 4 bedsores, rape and torture sound familiar? I don't call it oxygen stew for nothing. But I live independently now... I was rescued by a friendly visitor with an ADAPT T-shirt. I love living on my own. ... I'm a good cook. I do my own ADLs. I know when to go to sleep. I'm not going to be raped at night. I know I won't have bed sores. I have a wonderful attendant. ... Nancy Salandra said I was at death's door. Well Nancy, I block doors.

These quotes are from the report "Documenting the Institutional Bias in the United States - Real People Real Voices: Transcript of A Day of Testimony" Copyright 2006, ADAPT To request permission to reproduce, contact ADAPT at adapt@adapt.org

Peggy Dougherty testifies.
Photo by Tim Wheat



Is Integrated Managed Care in our Future?

By Bob Kafka

What in the heck is Integrated Managed Care? Well it is the traditional managed care delivery system with a new twist. The new twist is the inclusion of long term services and supports in the managed care delivery system.

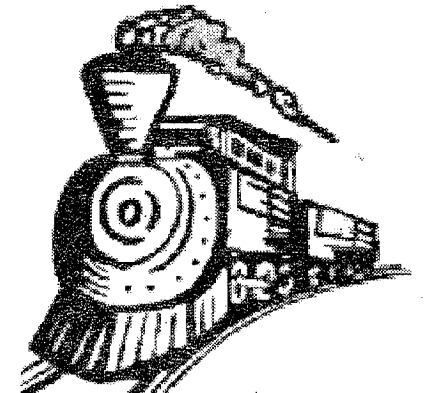
The expansion of managed care into the area of long term services and supports is growing as states are looking for ways to control the growth of Medicaid funded acute and long term service and support health care expenditures for people with physical disabilities and older Americans.

Folks with the label of MR/DD are usually not included because of the difference in the funding streams and that community's quite established delivery system.

The growing integration of acute and long term services and supports present an advocacy challenge for advocates who are concerned about the rationing of services and supports as well as the medicalization of home and community services..

Framing the issue, it appears some of our options are as follows:

1. We can oppose the move towards integrated Medicaid managed care by organizing a state by state campaign against its implementation;
2. We can shape how long term services and supports in a Medicaid managed care model should be integrated by developing components that must be included in any contract the State signs for a managed care program;
3. We can ignore it and let the managed care locomotive run over us.



Can the Integrated Managed Care model include the concepts of choice and control, consumer direction, non paternalistic service coordination, services in the most integrated setting, non-medical delivery of services as well as NOT rationing our acute health care needs? The answers to the above question are critical as we organize in response to the realities that every state is confronting. ADAPT is in the process of confronting these issues directly. Don't Mourn...Organize!

Summary of New Federal Money Follows the Person Rebalancing Demonstration

S.1932 Subchapter B Sec. 6071

PURPOSE

1. Increase use of home and community-based services to rebalance system
2. Eliminate barriers to receiving community services in setting of choice
3. Allow state to continue to provide services to those who choose to transition
4. Encourage states to address the institutional bias in their long term care services
5. Provide institutionalized Medicaid eligible individuals the choice to receive services in the community, if they would prefer that.

FUNDING AVAILABLE

1. \$250 million available January 1, 2007 ending September 30, 2007
2. \$300 million FY 2008
3. \$350 million FY 2009
4. \$400 million FY 2010
5. \$450 million FY 2011

PROGRAM DESIGN

1. States must apply to CMS for MFP funding. States must specify the length of time project will last (at least 2 years), geographic area covered (statewide or designated areas), targeted groups and numbers of individuals in each group to be served.
2. Selected states will receive an increase in their federal matching rate called FMAP for the first year each individual transitions from the institution to home and community services. FMAP reverts back to the normal FMAP rate in year 2.
3. Preference will be given states that propose serving multiple target groups as well as those proposing delivering self-directed services.

ELIGIBILITY

1. Individual in a nursing facility, intermediate care facility for the mentally retarded (ICF MR) or an institution for medical disease receiving Medicaid benefits; and
2. Has resided in the facility for at least 6 months (State when applying can require individual to have resided for up to 2 years in the facility.)

QUALIFIED COMMUNITY PROGRAMS

1. Medicaid Waivers
2. Personal Care Option
3. Home Health

QUALIFIED RESIDENCES

1. Home owned or leased by individual or family member.
2. Apartment with a lease that is lockable and the individual controls.
3. Residential setting with no more than 4 unrelated people.

Will the Money Follow the Person in Your State?

The recent passage of Money Follows the Person could mean real change for people who are institutionalized across the US. This is part of recently passed federal budget legislation will help people who want to move out of nursing homes and other institutions and instead receive services in the community.

"Free, free at last! There is nothing to compare being locked up to being free" said James Templeton. "It's like being in jail, but in an institution you don't know if you will ever get out. I spent 30 years inside an institution; I didn't get 'better', I just got out. Now my life is my own."

Across the nation 287,098 or 20.5% of all people in nursing homes have said they would rather live in the community. This is just people in nursing homes, but the new federal initiative can also cover people in ICFs MR and other institutional facilities who want out.

All too often people with disabilities of all ages, from children to adults and on up to seniors, wind up having to go to a nursing home or other institution because they either do not hear about community based support services, or the waiting lists are far too long. People with all kinds of disabilities, regardless of age and all degrees of disability, live well in the community. What is the key factor for success? The right services and supports.

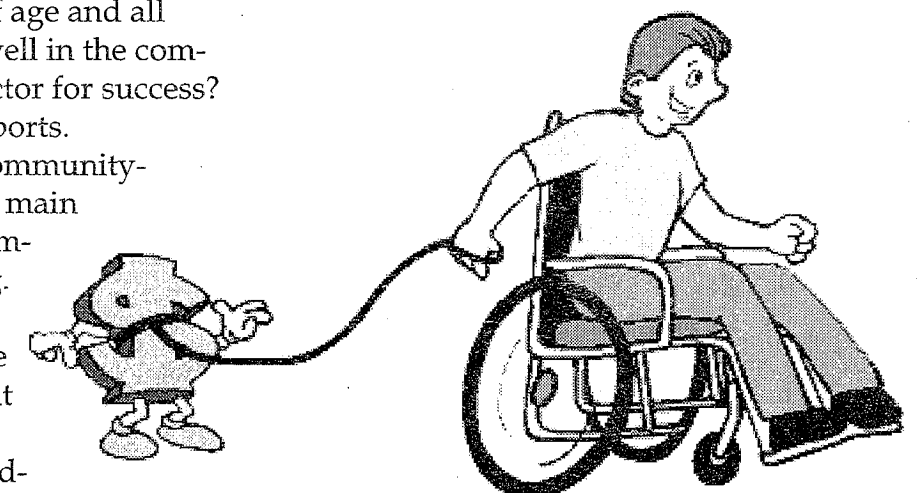
Lack of funding for community-based services is one of the main reasons waiting lists for community services are so long. But now, by listening to people with disabilities, the government has figured out how these services can be provided with little to no ad-

ditional costs. The money that pays for the person's services in the nursing home or other institution can be used instead to pay for their services in the community, hence the name: Money Follows the Person.

The idea is so simple it took a while to take hold, but now we have a piece of Medicaid reform that not only is more economical, it also gives people choice!

In 2007, under the federal Money Follows the Person initiative, states can apply to CMS (the federal Medicaid agency) and over the course of the next five years about 40 states will be selected to receive a better federal match (FMAP) for this initiative. Using Money Follows the Person, for the first year a person moves out onto community services the federal government will cover a higher percent of the cost of their services and states will pay a smaller portion. The enhanced rate, which is set state by state, would be between 12% and 25% higher than the regular Federal match rate depending on the state. (*To get the rate for your state email us at adapt@adapt.org*)

After that first year the match rate will return to the regular rate, but even this can save the state money. Ironically, the cost of community-based services is, on average,



about two-thirds the cost of the equivalent institutional services.

For advocates across the United States who have labored long and hard to promote choice and freedom in long term care services this is cause to celebrate. We have achieved another important step in Real Choice for people with disabilities of all ages! The Congressional Budget Office, CBO, estimates 100,000 people will get out over the 5 year period.

Too many of us don't know there is a choice; there is something beyond the institution. So we have to make these victories

visible.

Are long term services and supports going to be about funding buildings and outdated service systems? Or are they going to be about getting people the help they need? States and advocates have an important new tool at their finger tips. Will they use it? It's up to us. Alert your Governor and state legislature; challenge them to take full advantage of this initiative and apply with CMS as soon as possible. The RFP (Requests for Proposals) are supposed to be out by August 2006!

ADAPT Heads Back to the Nation's Capitol

ADAPT fall action will be in DC!
Monday September 11th - Saturday September 16th 2006
We need you there!

We will be taking our call to end the institutional bias and free our people to the doorsteps of our nation's movers and shakers.

We will:

- Continue the push for MiCASSA!
- Voice our resistance to cuts in community services and supports and housing.
- Demand Access Across America housing supports for people coming out of nursing homes and other institutions.
- Push NGA to help implement the Money Follows the Person.
- Maybe we'll even pay AARP a call and see why they are ignoring MFP.
- And more...

Call Tisha 303-733-9324 or e-mail tisha@atlantiscommunityinc.com
for rooms for the action.

Around the Nation



CONGRATULATIONS TO NEW MEXICO! MFP PASSES

New Mexico State Legislature ended its 30-day session passing a bill that provides people with disabilities, both young and old, the ability to move to community-living from an institutional setting. The passage of "Money Follows the Person Act," dove-tails with Federal legislation signed into law by President Bush in the Omnibus Budget bill, February 15, 2006.

For several tense days it was unclear what Governor Richards would do. Calls from advocates around the state and around the nation, and calls from bureaucrats in states which already have had success with similar Money Follows the Person initiatives, finally convinced him. Governor Richards signed the bill into law!

"This is great news for disabled people in New Mexico," Gil Yildiz, director of Albuquerque's Independent Living Resource Center, said. "Money Follows the Person" allows our people who want out of nursing homes to live in our communities to choose to do so for the first time, without the State having to provide additional money."

The MFP Act will allow a person in a nursing facility to choose community living, and have the money that has supported the person in the facility to follow the person to the community.

"The money has already been budgeted, so it's not going to cost the State any additional service money," Sherry Watson, director of the San Juan Center for Independence in Farmington, said. "Finally, our people who have been 'locked up' will have an opportunity to get out!"

In New Mexico, nearly 1,300 people currently residing in Nursing Homes would rather live in the community, ac-

cording to data collected by the Centers for Medicare and Medicaid Services (CMS). By eliminating the institutional bias in Medicaid, Money Follows the Person gives individuals increased choice about where they want to live and receive services. This model improves both quality of life and services for people with disabilities and elders. Former nursing home resident Sam Lopez said, "I am so happy with the freedom and choice I have now that I've moved into my own place — there's just no comparison!"

MISSISSIPPI LEGISLATORS' BRAVE HEARTS TURN TO COLD FEET

In February, Maureen O'Connell reported, "I just wanted to let you folks know that the Mississippi House of Representatives voted unanimously in favor of our Money Follows the Person bill. It is pretty remarkable." And indeed it was for one of the 3 worst institutionally biased states in the nation. Yet the brave members of the House, and the excellent advocacy of the disability community, were in the end squashed by the Senate — at least for now. But the activists who survived the ravages of Katrina have vowed to fight again.

ADAPT ACTIVISTS PROTEST TRANSIT SYSTEM'S COUNTER-SUIT

(Thanks to Dave Reynolds, Inclusion Daily Express, and Cassie James Holdsworth for much of this story!)

PHILADELPHIA — Seeking a new low, Philadelphia's transit system, SEPTA, decided to sue Ms. Peterson, the grandmother of a 5-year-old disabled girl who had sued SEPTA for access to the buses.



SEPTA refused the girl and her grandmother service on a bus; SEPTA officials said the girl's wheelchair did not fit on the bus because it was not of a standard size but was more like a stroller. The judge threw out the ADA suit but SEPTA then sued for over \$8,000 in court costs. "If we lose a case, they're going to make us pay?" ADAPT activist Nancy Salandra told local TV news KYW. "It's not like we're getting any money out of these cases. We only sue because we have no choice because (SEPTA) won't do what they're supposed to do according to the ADA." In the past ADAPT and numerous individuals with disabilities have had to sue SEPTA for significant failures to provide accessible service to riders with disabilities.

Philly ADAPT demonstrated in support of the girl and her grandmother. After four Fridays of protest, just when some were about to give up, ADAPT of Philadelphia got the suit dropped. Ms. Peterson was relieved to have SEPTA drop a bill for \$8,200. As the sole caretaker living on a fixed income, this would have been a nightmare. "As an ADAPTER I just pray that Ms. Peterson will not be discouraged from fighting for the rights of her granddaughter" said Cassie James Holdsworth. "She can now tell her granddaughter that the disabled activists would not give up the

fight until the bill was dropped! The people united will never be defeated and even in those difficult days we can still win!"

ADAPT CELEBRATES NATION-WIDE ON VALENTINE'S DAY: HOME IS WHERE THE HEART IS

Across the nation ADAPT groups marked Valentine's Day with press conferences and celebrations of passage of the federal Money Follows the Person.

"Free, free at last! There is nothing to compare being locked up to being free" said James Templeton "It's like being in jail, but in an institution you don't know if you will ever get out. I spent 30 years inside and then I didn't get better, I just got out. Now my life is my own."

Lack of funding for community-based services is one of the main reasons waiting lists for community services are so long. But now, by listening to people with disabilities, the government has figured out how these services can be provided without additional costs. The money that pays for the person's services in the nursing home or other institution can be used instead to pay for their services in the community, hence the name Money Follows the Person.



Join ADAPT in DC September 11-16, 2006



Passages



Brenda Eldridge

Sad news for ADAPT. Brenda Eldridge from Kansas passed away this May. Brenda, who had been on several national actions had been struggling for some time now with health issues. Brenda worked as a legislative advocate for Topeka Independent Living Resource

Center. She also served on the President's Council for Disabled Persons.

She is survived by her husband Sam and son DJ Breedon. Despite dealing with many personal issues, Brenda found time to help advocate for a better world for folks with disabilities across the nation and her passing is a loss to us.

WANTED: YOUNG BLOOD!

- Are you 18 - 30 years old?
- Do you like to kick ass in the name of disability rights?
- Do you want to travel to DC and meet other young ass kickers?

ADAPT seeks young people with all types of disabilities for the

**National ADAPT Youth Summit
September 8 - 10
in Washington, DC.**

If you are interested, please email Rahnee at rahneek@yahoo.com or call her at (312) 663-1292 for details.

YOUTH VOICE MUST BE HEARD!



ADAPT WANTS YOU!